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File No.: EXP202205973

RESOLUTION OF SANCTIONING PROCEDURE

From the procedure instructed by the Spanish Agency for the Protection of Data and based on the following

BACKGROUND

FIRST: On 25/05/2022, a written submission was received by this Agency from A.A.A. (hereinafter, the complainant), through which a complaint is filed against B.B.B. with NIF ***NIF.1 (hereinafter, the respondent), regarding the installation of a video surveillance system at ***ADDRESS.1, with indications of a possible violation of the provisions of personal data protection regulations.

The reasons supporting the complaint are as follows:

“[...]

The property in question is adjacent to my home and, consequently, its cameras are invading my privacy and that of my family, as they are indirectly focusing on my garden and the entire area of sole access to it. (...)

The CCTV installation consists of six cameras that capture images and have sound capabilities; all of them are focused on areas outside a property owned by the titleholder with neighborhood servitude, and two of these devices are directed towards areas of my garden.

[...]”

Along with the complaint, the following documentation is provided:

- Plans showing the location of the cameras and the affected properties.
- Photographic report of the exterior of the respondent's property and the location of the devices.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), on 26/05/2022, this complaint was forwarded to the respondent for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations. The forwarding, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was acknowledged on 08/06/2022, as recorded in the acknowledgment of receipt in the file.

THIRD: On 31/05/2022, a written submission was received from the complainant indicating an error in the complaint regarding the email address of the respondent, as they had indicated their own email address in that field. Since the notification was sent to the complainant, on 31/05/2022, the forwarding to the respondent was reiterated via postal mail, resulting in notification on 14/06/2022. On 22/06/2022, a response was received from the respondent indicating, in summary, that their property has 6 video surveillance cameras that exclusively focus on their private property, with recordings stored on a hard drive for 12 days. The following documentation is provided:

- Photographic report of the camera locations with a brief description of what they capture, as well as the informational sign for the video surveillance area.
- Plan showing the location of the cameras and a photograph of the monitor displaying what is viewed through each one.

FOURTH: On 30/06/2022, this Agency requested additional documentation from the respondent. Specifically, they were asked to provide new images from the field of view of cameras 2, 3, 4, and 6 as they exceed the captured public space, as well as clearer photographs of the informational signs. On 19/07/2022, a written submission was received from the respondent stating: “To respond to the requested information, we would like to attach the deeds of the property and warehouse that are being recorded by cameras 2, 3, 4, and 6. Everything that enters the field of view of those cameras is private property of A.A.A. The area they cover is not public, and we need to detect that part since we have previously suffered material damages.” The mentioned deed is provided.

FIFTH: On 21/07/2022, in accordance with Article 65 of the LOPDGDD, the complaint filed by the complainant was accepted for processing.

SIXTH: On 22/07/2022, the respondent provided more detailed photographs of the two informational signs for the video surveillance area.

SEVENTH: On 17/10/2022, the Director of the Spanish Agency for the Protection of Data agreed to initiate sanctioning proceedings against the respondent, in accordance with the provisions of Articles 63 and 64 of the LPACAP, for the alleged infringement of Articles 5.1.c) and 13 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), classified under Article 83.5.a) and b) of the GDPR.

This initiation agreement, which was notified in accordance with the rules established in the LPACAP through postal notification, was delivered to the respondent on 28/10/2022.

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EIGHTH: On 14/11/2022, the respondent submitted a written statement, in due time and form, to this Agency in which they expressed the following:

"[...]

Furthermore, the Mr. claims that the cameras focus on an area of "neighborhood servitude." In this regard, it should be clarified that the area referred to by the complainant is privately owned.

Specifically, it is part of the cadastral parcel ***REFERENCE.1. A plan obtained from the cadastre is provided, highlighting two fundamental issues; on one hand, that the area purportedly called neighborhood servitude does not exist; it is the patio of my property, that is, privately owned, as stated in the cadastre; secondly, it can be seen that the access to the complainant's residence (Parcel highlighted in red) is made from the front of the house and through that area, access is gained to the rear patio, which, by the way, borders public land to the north, as shown in the plan.

[...]

Therefore, the accompanying documentation proves that the area in question is privately owned. It is not a public access area nor publicly owned, nor is there a right of way established over it and duly registered in the Property Registry, so the passage taken by Mr. complainant corresponds to a passage that has been one of mere tolerance and occasionally a passage through a property that is not his own and that occurs when there is no one in the house, which is a second residence.

[...]

If the cameras do not affect third parties or public spaces, the installation of informative signs is not necessary, under the provisions of Article 5.2c) of Organic Law 3/2018, of December 5, on the Protection of Personal Data and guarantee of digital rights.

That is to say, by placing the sign, not only is one acting in a guaranteed manner, but one is acting in a more guaranteed manner than what the applicable legislation imposes.

[...]"

Along with the written allegations, the following documentation is provided:

- Certificate from the Property Registry of (...) listing the properties owned by the respondent and the complainant.
- Descriptive and Graphic Consultation of cadastral data of the property (Warehouse with cadastral reference: ***REFERENCE.1) located at ***ADDRESS.1.
- Photographic report of the informative sign of video surveillance and monitor of the video surveillance system.

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NINTH: On 04/05/2023, the instructing body of the procedure agreed to open a period for evidence,

considering the complaint filed by the complainant and its documentation, as well as the allegations to the initiation agreement PS/00394/2022 presented by the respondent and the documentation accompanying them.

TENTH: On 11/05/2023, the instructing body of the sanctioning procedure formulated a resolution proposal, in which it proposes that the Director of the Spanish Agency for Data Protection orders the filing of the case as it has been proven that all devices focus on the private space of the respondent and, consequently, the informative sign of the monitored area is not necessary.

This resolution proposal was notified to the respondent in accordance with the rules established in the LPACAP, and was delivered on 24/05/2023, as evidenced by the acknowledgment of receipt in the file. To date, no allegations have been received from the respondent.

From the actions taken in this procedure and the documentation in the file, the following has been proven:

PROVEN FACTS

FIRST: In the complaint dated 25/05/2022, the installation of a video surveillance system, consisting of 6 cameras, at ***ADDRESS.1 is highlighted; which would be capturing images of the private garden of the complainant and an exterior area with neighborhood servitude.

The existence of the system in question is proven by the photographic report provided by the complainant.

SECOND: Identified as the main responsible for the video surveillance system is B.B.B. with NIF ***NIF.1.

THIRD: The images from the monitor, dated 12/06/2022, provided by the respondent prove the following:

- None of the 6 devices capture private areas of the complainant, as those capable of doing so have privacy masks.
- The field of vision of cameras 2, 3, 4, and 6 extends to a portion of land that separates the warehouse from the respondent's residence.

FOURTH: On 19/07/2022, the respondent provided a "Declaration of completed new work - Granted by Mrs. B.B.B.", dated 21/10/2021, regarding the warehouse.

The document states: "Portion of land in the term ***ADDRESS.1 (...). It belongs to her by adjudication in the inheritance deed of her mother, Mrs. (...)"

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FIFTH: On 22/07/2022, the respondent provided photographs of the informational sign regarding the video surveillance area placed in the window. Its content is as follows:

- "Responsible": B.B.B..
- "You can exercise your data protection rights before": ***ADDRESS.1.
- "More information about the processing of your personal data": empty.

SIXTH: It is documented that the portion of land captured by cameras 2, 3, 4, and 6 is privately owned by the respondent. This fact is proven by the "Registration Certification" of the properties owned by the respondent and the "Descriptive and Graphic Consultation of cadastral data of the real estate (cadastral reference: ***REFERENCE.1) located at ***ADDRESS.1.

LEGAL GROUNDS

I

Competence and applicable regulations

In accordance with the powers granted to each supervisory authority by Article 58.2 of the GDPR, and as established in Articles 47, 48.1, 64.2, and 68.1 of the LOPDGDD, the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic

law, by the regulatory provisions issued for its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures.”

II

The image is a personal data

The physical image of a person, according to Article 4.1 of the GDPR, is personal data and its protection is therefore subject to this Regulation. Article 4.2 of the GDPR defines the concept of “processing” of personal data.

Images generated by a system of cameras or video cameras are personal data, and their processing is subject to data protection regulations.

III

Data minimization

Article 5.1.c) of the GDPR states the following:

“1. Personal data shall be:

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(...)

c) adequate, relevant, and limited to what is necessary in relation to the purposes for which they are processed (‘data minimization’)”

Regarding processing for video surveillance purposes, Article 22 of the LOPDGDD establishes that natural or legal persons, public or private, may carry out the processing of images through camera or video camera systems for the purpose of safeguarding the security of persons and property, as well as their facilities. However, the capture of images from public roads is only permitted to the extent that it is essential for the aforementioned purpose.

Under no circumstances will the use of surveillance practices beyond the area subject to the installation be allowed, and in particular, it must not affect surrounding public spaces, adjacent buildings, and vehicles other than those accessing the monitored space.

The installed cameras cannot capture images of private spaces of third parties and/or public spaces without a duly justified cause, nor can they affect the privacy of passersby freely moving through the area.

IV

Transparency of personal data processing

Article 5 of the GDPR “Principles relating to processing” indicates that:

“1. Personal data shall be:

a) processed lawfully, fairly, and in a transparent manner in relation to the data subject (‘lawfulness, fairness, and transparency’).”

This principle is developed in Article 12 of the GDPR and, depending on whether the personal data is obtained from the data subject or not, the information that must be provided is listed in Articles 13 or 14 of the GDPR.

Regarding processing for video surveillance purposes, Article 22.4 of the LOPDGDD provides that:

“The information duty provided for in Article 12 of Regulation (EU) 2016/679 shall be deemed fulfilled by placing an informational device in a sufficiently visible location identifying at least the existence of the processing, the identity of the responsible party, and the possibility of exercising the rights provided for in Articles 15 to 22 of Regulation (EU) 2016/679. A connection code or internet address to this information may also be included in the informational device.”

V

Claims made

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This Agency has no record of the respondent having submitted a written statement of allegations against the proposed resolution.

However, as already indicated in the proposed resolution, regarding the allegations presented by the respondent against the opening agreement of the current sanctioning procedure, the following considerations must be made.

1. The respondent alleges that there is no neighborhood servitude in the area towards which some of the cameras are directed, since it is the patio of their privately owned home.

They also claim that both access to the claimant's home and to their backyard is made from the front of the property; not through their property. Furthermore, the presence of the caravan in the claimant's garden does not imply that there is a servitude or that access "has occurred merely by the tolerance of the property."

According to the documentation provided during the allegation period, it has been demonstrated that the devices that could affect the claimant's property have privacy masks, which limits their capture to private areas of the respondent. It has also been proven that the portion of land captured by cameras 2, 3, 4, and 6 belongs to the private space of the respondent (Registration certification and Descriptive and Graphic Consultation of cadastral data of real estate (cadastral reference: ***REFERENCIA.1). In light of the above, the allegation is upheld, and the infringement attributed under Article 5.1.c) of the GDPR is archived.

2. The respondent alleges that they are not obliged to install informative signs for the video surveillance area, since the cameras are limited to recording their property and, therefore, do not affect third parties or public spaces.

In this case, since the video surveillance system has been installed in a private area, there is indeed no "data processing" of the claimant or third parties. Therefore, the presence of an informative sign for the video surveillance area is not necessary.

Thus, the allegation made is accepted, and the infringement attributed under Article 13 of the GDPR is archived.

It should be noted that "The interested parties shall be responsible for the veracity of the documents they present," in accordance with Article 28.7 of the LPACAP.

Therefore, in accordance with the applicable legislation,
the Director of the Spanish Agency for Data Protection RESOLVES:

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FIRST: ORDER the ARCHIVING of the current sanctioning procedure against B.B.B., with NIF ***NIF.1, as the commission of the infringements of Articles 5.1.c) and 13 of the GDPR has not been proven.

SECOND: NOTIFY this resolution to B.B.B.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative process in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file an administrative contentious appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

Finally, it is noted that in accordance with the provisions of Article 90.3 a) of the LPACAP, the firm resolution in the administrative process may be provisionally suspended if the interested party expresses their intention to file an administrative contentious appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of Law 39/2015, of October 1. They must also provide the Agency with documentation that proves the effective filing of the administrative contentious appeal. If the Agency does not become aware of the filing of the administrative contentious appeal within two months from the day following the notification of this resolution, it will consider the provisional suspension to be concluded.

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Mar España Martí

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